ably gone, though they had lost their magistrates; and that is the main ground on which the argument for the relator stands: but I think it is all reconcileable with this doctrine. Lord Mansfield did not say in that case that the corporation could act, or that it was not dissolved to some purposes; but only that the King might renovate it, and when renovated all the former rights would revive and attach on the new corporation, and amongst **[242]** others the right of suing on the bond given to the old corporation. But it is said that, supposing this to be the case, the King was deceived in his grant, and that the grant is consequently void. But I think he was not. The recital in the new charter states all those facts from whence the King's right arose, and from whence he drew his conclusion in point of law, that the corporation was in danger of being dissolved. There is no doubt but that was the case. But there is no one fact there stated to the King which was not true. If the King be called upon to grant some part of his estate, and the interest which he has in it is greater than that which is represented to him, he is then deceived, and his grant is void: but that is not the case here. The old corporation was in danger of being dissolved, and no relief could be administered without the King's interference; his act was necessary to revive the corporation. Then it is said that the new charter cannot take effect, because the King has not used it in words of grant, but only words of confirmation. This, in my opinion, reverts to what I have already said. To some purposes it was dissolved; it was so, if the King did not choose to renovate it. But he did so choose: and by his grant (which it was competent to him to make) he gave power to do such acts as were necessary for the government of the town. Then has this new charter been accepted or not? The majority of the grantees are stated to have accepted it; and the refusal by a few of the body was certainly not sufficient to repel the acceptance of the rest. Therefore judgment must be given for the defendant, who derives his title under this charter.

Ashhurst, J.—Although this matter has in the argument branched out into several points, the principal question is whether at the time of granting the charter the present King had a right to grant it, and whether from any thing contained in the charter it is inadequate to the purpose intended. To determine this it may be proper to consider what is the end and intention of creating corporations aggregate of the kind now under discussion. The principal end is for preserving good order and government within the limits of the towns in which they are established: they are not merely temporary institutions, but are intended to have perpetual succession. Therefore they must have the means of preserving that succession: and whenever a corporation is so far reduced by accident or negligence as to be **[243]** inadequate to the purposes of government, and to have lost the power of continuing that succession from the want of any integral part, it is virtually dead, for it is no longer capable of answering the end of its institution. And, as it was originally created for the public good, and not merely with a view to the private interest of individuals, whenever it can no longer perform those functions which is a condition incident to its incorporation, the Crown ought not, for the sake of a few individuals, to be restrained from exercising its prerogative in granting a new constitution for the benefit of the inhabitants of the place, whose interest the Crown had in view in the original incorporation. This corporation was in that state at the time of the new charter; it could not continue its own existence, nor do any corporate act; then what should in law or reason prevent the Crown from interposing? But it has been contended that the old corporation was not dissolved, because some of the natural members were in existence; and that there cannot be two corporations at one time in the same place with co-extensive powers. I admit the latter part of the position to be true, namely, that there cannot be two such effective corporations in the same place; for, instead of good order, that would only be productive of anarchy; but I deny the former position; for I say when the old corporation was reduced to such a state as to be incapable of continuing its existence, and of doing any corporate act, it was extinct as a body corporate. The case cited from Rolle's Abridgement is express to that effect; for it is there laid down, that if a corporation consist of brothers and sisters, and all the sisters die, the corporation is dissolved. If so, it must follow as a necessary consequence that the Crown has a right to interpose, either by reviving the old corporation, or by granting a new charter. Reason is strongly in favour of this determination; and one case that has reason to support it ought to weigh against many that are destitute of that foundation. To what end should the Crown be

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